

TENTATIVE RULINGS FOR September 10, 2026
Department S29 - Judge Nicole Quintana Winter

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. or 7:00 p.m. on the court day immediately before the hearing.

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your continued appearance is not necessary. However, you must check in. If both sides do not appear, the tentative will simply become the ruling. If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling. If one party wants to argue, Court will hear argument but will not change the tentative. If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court. This procedure is meant to minimize your waiting time in Court.

JOSE ROSAS
v.
MENASHA GLOBAL LLC, et al.
CIVSB2605256

Motion: Demurrer and Motion to Strike Portions of the First Amended Complaint
Movants: Defendants Menasha Global LLC, Menasha Packaging Company, LLC, Menasha Corporation, and Lauren Hernandez
Respondent: Plaintiff Jose Rosas

PROCEDURAL/FACTUAL BACKGROUND

On February 17, 2026, Plaintiff Jose Rosas filed a complaint. The operative first amended complaint was filed on May 12, 2026, against Defendants Menasha Global LLC, Menasha Packaging Company, LLC, Menasha Corporation, and Lauren Hernandez, alleging causes of action for: (1) retaliation in violation of Labor Code section 98.6; (2) retaliation in violation of Labor Code section 1102.5; (3) retaliation in violation of Labor Code section 6310; (4) wrongful termination in violation of public policy; and (5) intentional infliction of emotional distress.

Plaintiff alleges he worked as a forklift driver from October 2023 until his termination in December 2025. (FAC ¶¶ 2, 13.) During his employment, he repeatedly complained about unpaid work, missed meal and rest periods, and unsafe forklift conditions. (FAC ¶¶ 14–17.) After a May 2025 forklift accident involving an allegedly unmarked wet floor, Plaintiff reported the incident and safety concerns to OSHA and informed management. (FAC ¶ 18.)

Plaintiff alleges Defendant Hernandez thereafter demanded that he accept sole responsibility for the accident and disciplined him when he refused. (FAC ¶ 19.) Plaintiff later submitted a written safety report concerning an overheating forklift, after which management allegedly criticized his work and told him to “use [the forklift] or go home” and that “a monkey could do a better job.” (FAC ¶¶ 20–21.)

Plaintiff further alleges Hernandez began monitoring him through warehouse racks, failed to address his continued wage and safety complaints, participated with the plant manager in suspending him, and ultimately sent him a written termination notice. (FAC ¶¶ 22–24.)

Defendants Menasha Global LLC, Menasha Packaging Company, LLC, Menasha Corporation, and Lauren Hernandez demur to the fifth cause of action for intentional infliction of emotional distress on the grounds that it fails to state facts sufficient to constitute a cause of action and is uncertain.¹ (Code Civ. Proc., § 430.10, subds. (e), (f).) Defendants also move to strike allegations and the prayer for punitive damages pursuant to Code of Civil Procedure sections 435 and 436. Plaintiff opposes and Defendants reply.

DISCUSSION

Legal Standard - Demurrer

A demurrer challenges defects that appear on the face of the pleading, which includes incorporated exhibits, or matters that are judicially noticeable, but nothing else. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*); *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) When evaluating a demurrer, the Court reasonably interprets the pleading by reading it as a whole and its parts in their context. (*Blank, supra*, 39 Cal.3d at p. 318.) The material facts that are properly pled are assumed true for purposes of a demurrer, but contentions, deductions, or conclusions of fact or law are not assumed true. (*Ibid.*) Whether a plaintiff can prove the allegations or the difficulty in proving the allegations is of no concern. (*Concerned Citizens of Costa Mesa, Inc. v. 32nd Dist. Agricultural Assn.* (1986) 42 Cal.3d 929, 936.) The complaint is to be liberally construed. (Code Civ. Proc., § 452.)

A demurrer predicated on insufficient facts to constitute a cause of action (Code Civ. Proc., § 430.10, subd. (e)) should be granted only when the facts alleged on the face of the complaint fail to state any valid claim entitling the plaintiff to relief. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d at p. 318.) On the other hand, “if it appears from the complaint ... there is no reasonable possibility that an amendment could cure the complaint’s defect,” sustaining without leave to amend is permissible. (*Heckendorn v. City of San Marino* (1986) 42 Cal.3d 481, 486.)

A complaint may also be challenged on demurrer for uncertainty. (Code Civ. Proc., § 430.10, subd. (f).) This challenge generally is sustained only where the complaint is unfairly vague or so ambiguous or unintelligible that the defendant cannot reasonably respond, i.e., determine the issues to be admitted or denied. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Ibid.*) Demurrers for uncertainty are not favored.

Meet and Confer

The Court finds that the meet and confer requirement has been satisfied.

Analysis

1. Demurrer – Fifth Cause of Action for IIED

¹ Defendants filed a notice of errata on July 29, 2026 correcting references to “fraud” in the notice of demurrer to “intentional infliction of emotional distress.”

To state an IIED claim, a plaintiff must plead, (1) outrageous conduct by the defendant, (2) intentional or reckless causing emotional distress, (3) severe emotional distress, and (4) causation. (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.) Outrageous conduct is conduct that is so extreme it exceeds all bounds that are usually tolerated in a civilized community, beyond all possible bounds of decency, and regarded as atrocious. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-51; *Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 496.) Severe emotional distress consists of fright, grief, shame, humiliation, embarrassment, anger, chagrin, disappointment, or worry. (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1376.)

a. Workers' Compensation Exclusivity

Defendants argue Plaintiff's IIED claim is barred by workers' compensation exclusivity because the alleged conduct arose from the employment relationship. Plaintiff responds that retaliation for reporting safety violations contravenes fundamental public policy and therefore falls outside the workers' compensation bargain.

The Workers Compensation Act (WCA), with certain narrow exceptions, is the exclusive remedy for injuries arising within the course of employment. (Lab. Code, §§3600, subd. (a), 3602, subd. (a); *Angelotti v. The Walt Disney Co.* (2011) 192 Cal.App.4th 1394, 1403.) Generally, emotional distress damages are subsumed in the WCA as long as the basic conditions of compensation are otherwise satisfied and the employer's conduct neither contravenes fundamental public policy nor exceeds the risks inherent in the employment relationship. (*Livitsanos v. Superior Court (Continental Culture Specialists, Inc.)* (1992) 2 Cal.4th 744, 754.)

In *Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876 (*Miklosy*), the plaintiffs alleged whistleblower retaliation, wrongful termination in violation of public policy, and IIED. The Supreme Court held the IIED claim barred because the alleged wrongful conduct occurred at the worksite in the normal course of the employer-employee relationship. (*Id.* at p. 902.) The Court specifically rejected the contention that whistleblower retaliation necessarily exceeds the risks inherent in the employment relationship. *Miklosy* explained that the public policy exception permits a wrongful termination claim in violation of public policy under *Tameny v. Atlantic Richfield Co.* (1980) 27 Cal.3d 167, but does not create a corresponding exception for a separate IIED claim. (*Miklosy, supra*, 44 Cal.4th at pp. 902–903.)

That reasoning applies here. Plaintiff's IIED cause of action incorporates the preceding allegations and expressly rests on Defendants' asserted failure to respond to his complaints, retaliatory conduct, suspension, and termination. (FAC ¶¶ 70–75.) The conduct identified in the opposition likewise occurred entirely within the employment relationship: workplace discipline, Hernandez's monitoring of Plaintiff while he worked, criticism of Plaintiff's performance, responses to his safety complaints, suspension, and termination. (FAC ¶¶ 19, 21–24.) The Court finds that the allegations are pleading non-FEHA harassing conduct within the risks of the employment relationship. (See, e.g., *Cole v. Fair Oaks Fire Protection Dist.* (1987) 43 Cal.3d 148, 159-60; *Operating Engineers Local 3 v. Johnson* (2003) 110 Cal.App.4th 180, 189-91.)

Plaintiff's reliance on *Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75 (*Light*) does not warrant a different result. *Light* recognized that IIED claims predicated on discrimination and retaliation prohibited by FEHA fall outside the compensation bargain. (*Id.* at pp. 100–102.) In doing so, however, *Light* expressly distinguished *Miklosy* and acknowledged that *Miklosy* had rejected the same exception for whistleblower retaliation. Plaintiff alleges no

FEHA violation here. His retaliation theories arise under Labor Code sections 98.6, 1102.5, and 6310, and the public policy underlying those provisions.

The same reasoning applies to Hernandez. Hernandez's alleged conduct concerns Plaintiff's discipline, supervision, suspension, and termination and therefore arose within the employment relationship. (FAC ¶¶ 7, 19, 22–24.) As previously stated, Plaintiff has not alleged any FEHA violations against any defendants in this case.

Accordingly, the fifth cause of action is barred by WCA exclusivity.

b. Outrageous Conduct

Our Appellate Court has defined “outrageous” conduct as follows:

“Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Christensen v. Superior Court, supra, 54 Cal.3d at p. 903, 2 Cal.Rptr.2d 79, 820 P.2d 181.) “[M]ere insulting language, without more, ordinarily would not constitute extreme outrage” unless it is combined with “aggravated circumstances.” (Alcorn v. Anbro Engineering, Inc. (1970) 2 Cal.3d 493, 499, 86 Cal.Rptr. 88, 468 P.2d 216 (Alcorn).) But “[b]ehavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (Agarwal v. Johnson (1979) 25 Cal.3d 932, 946, 160 Cal.Rptr. 141, 603 P.2d 58 (Agarwal), disapproved on other grounds by White v. Ultramar, Inc. (1999) 21 Cal.4th 563, 574 fn. 4, 88 Cal.Rptr.2d 19, 981 P.2d 944.)

Smith v. BP Lubricants USA, Inc. (2021) 64 Cal.App.5th 138, 147.

Plaintiff correctly observes that outrageousness may present a factual question. However, the issue may be resolved on demurrer where the alleged conduct, even if accepted as true, does not rise to the level required for an IIED claim. (*Barker v. Fox & Associates* (2015) 240 Cal.App.4th 333, 355.) Ordinary personnel management activity, such as criticism, discipline, monitoring, or termination, does not support an IIED claim merely because it was allegedly undertaken for an improper or retaliatory reason. (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 79-80.)

The alleged conduct must be considered collectively. Nevertheless, the allegations do not satisfy the threshold for an IIED claim. Hernandez's request that Plaintiff accept fault for a workplace accident, ensuing discipline, monitoring of Plaintiff's work, failure to respond to his complaints, participation in his suspension, and termination are personnel and supervisory activities. (FAC ¶¶ 19, 22–24.)

The alleged statements, “too slow” and “a monkey could do a better job” is plainly insulting and inappropriate. (FAC ¶ 21.) But the FAC does not allege the remark was racial, discriminatory, threatening, or accompanied by some other aggravated circumstance. As alleged, the Court finds that the insults concerning Plaintiff's work performance do not “exceed all bounds of that usually tolerated in a civilized community.” (*Smith, Supra*, 64 Cal.App. 5th at 147.) Likewise, Hernandez's

alleged practice of watching Plaintiff through warehouse racks and hiding when detected may reasonably be viewed as intimidating or unusual, but it does not, without more, constitute conduct exceeding all bounds tolerated in a civilized community. (FAC ¶ 22.)

As the Court has found two grounds to sustain the demurrer, the Court declines to address the remaining grounds put forth by Defendants.

c. Leave to Amend

Although Plaintiff previously amended his complaint, this is the first demurrer adjudicated by the Court, and Plaintiff expressly requests leave to amend. However, Plaintiff does not explain how the FAC may be amended to state an IIED claim in light of the WCA exclusivity. Leave to amend would only be appropriate where Plaintiff had alleged violations of FEHA. As, all of Plaintiff's causes of action are based in the Labor Code, the Court sustains the demurrer to the IIED cause of action, without leave to amend.

2. Motion to Strike

Defendants move to strike the punitive damages allegations from paragraphs 40, 50², 69, and 78 and paragraph C of the prayer.

Civil Code section 3294 permits punitive damages upon proof of oppression, fraud, or malice. Alleging the statutory terminology is not itself improper where the complaint as a whole alleges facts supporting those characterizations. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6–7 (*Perkins*)). The surrounding allegations must be considered.

Plaintiff alleges a course of retaliatory conduct following his wage and safety complaints, including discipline after refusing to accept responsibility for the accident, continued monitoring, suspension, and termination. (FAC ¶¶ 16–24.) The fact that some of the challenged conduct involves personnel decisions does not, by itself, preclude punitive damages. Rather, the issue is whether the FAC alleges facts supporting oppression, fraud, or malice within the meaning of Civil Code section 3294 and, as to the employer Defendants, the additional requirements of subdivision (b). (*White, supra*, 21 Cal.4th at pp. 572–573.)

The FAC is deficient as to employer attribution.

Civil Code section 3294, subdivision (b), provides that an employer is not liable for punitive damages based on an employee's acts unless the employer had advance knowledge of the employee's unfitness and acted with conscious disregard of the rights or safety of others, or authorized or ratified the wrongful conduct, or was itself personally guilty of oppression, fraud, or malice. For a corporate employer, the requisite advance knowledge, authorization, ratification, or culpable conduct must be that of an officer, director, or managing agent. (Civ. Code, § 3294, subd. (b); *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 572; *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 723–724.)

The FAC alleges generally that all acts were “authorized, directed, or ratified by Defendants’ officers, directors, managing agents, or other persons with authority.” (FAC ¶ 10.) Paragraph 69 similarly alleges that “officers, managing agents, and/or supervisors” authorized, condoned, or ratified the conduct. (FAC ¶ 69.)

² Defendants identify the second challenged paragraph as paragraph 50, but the quoted punitive damages language appears in paragraph 52 of the FAC; paragraph 50 concerns attorney fees. (FAC ¶¶ 50, 52.) Because Defendants quote the challenged language verbatim and Plaintiff addresses the punitive damages issue, the reference to paragraph 50 is treated as a clerical error.

Menasha Global LLC and Menasha Packaging Company, LLC are alleged to be limited liability companies. (FAC ¶¶ 4–5.) As employers, they remain subject to the requirements of Civil Code section 3294, subdivision (b).

Accordingly, the Court denies Defendants’ motion to strike as to paragraphs 40, 52, and 69 and paragraph C of the prayer. The motion to strike paragraph 78 is moot in light of the ruling sustaining the demurrer to the fifth cause of action.

RECOMMENDATION

SUSTAIN WITHOUT LEAVE TO AMEND Defendants’ demurrer to the fifth cause of action for intentional infliction of emotional distress.

DENY Defendants’ motion to strike the punitive damages allegations in paragraphs 40, 52, and 69 and paragraph C of the prayer. Plaintiff alleges the acts at issue with authorized, directed, or ratified by Defendants’ officers, directors, and managing agents. The motion to strike paragraph 78 is **MOOT** in light of the ruling sustaining the demurrer to the fifth cause of action.

RULING

The Court rules as follows:

- (1) Sustains Defendants’ demurrer to the fifth cause of action **without** leave to amend;
- (2) Finds that the motion to strike to paragraph 78 is moot in light of the Court’s ruling on the demurrer;
- (3) Denies Defendants’ motion to strike the punitive damages allegations in paragraphs 40, 52, and 69 and paragraph C of the prayer;
- (4) Court sets the Trial Readiness Conference for January 27, 2028, at 9:00 a.m., and Jury Trial for January 31, 2028, at 10:00 a.m., and
- (5) Orders Defendants, as the prevailing party, to give formal notice of the Court’s ruling.

Dated: September 10, 2026

Judge Quintana Winter